

HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

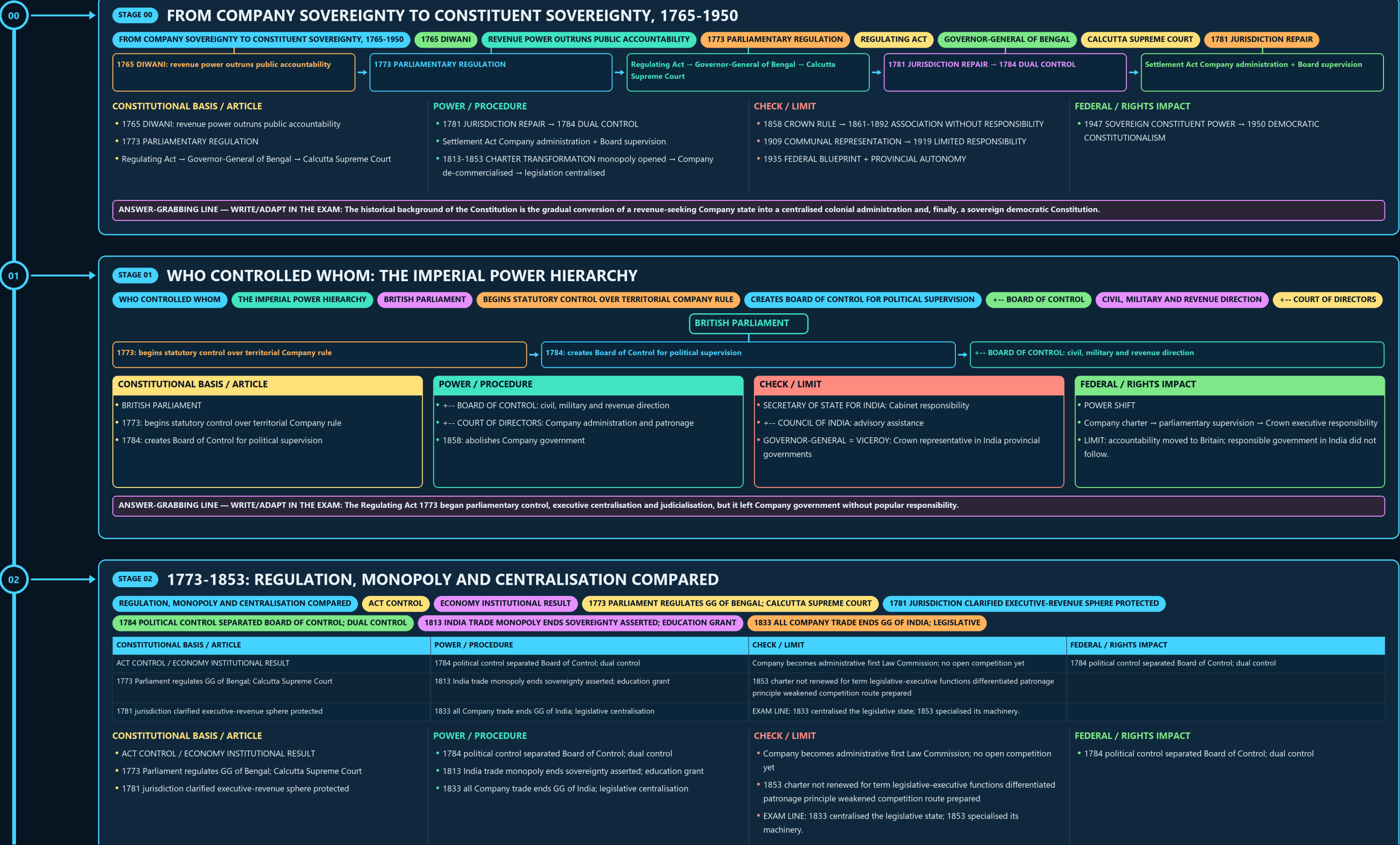
FROM COMPANY SOVEREIGNTY TO → WHO CONTROLLED WHOM: THE → 1773-1853: REGULATION, MONOPOLY AND → REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919 → THE 1935 CONSTITUTIONAL MACHINE → 1935 INHERITANCE: RETAINED, TRANSFORMED

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g16 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



03

1784 ACT CONTROL / EASY INSTITUTIONAL RESULT

1773 Parliament regulates GG of Bengal; Calcutta Supreme Court

1781 jurisdiction clarified executive-revenue sphere protected

1784 political control separated Board of Control; dual control

1813 India trade monopoly ends sovereignty asserted; education grant

1833 all Company trade ends GG of India; legislative centralisation

Company becomes administrative first Law Commission; no open competition yet

1853 charter not renewed for term legislative-executive functions differentiated patronage principle weakened competition route prepared

EXAM LINE: 1833 centralised the legislative state; 1853 specialised its machinery.

1784 political control separated Board of Control; dual control

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Charter Acts 1793 and 1813 show that monopoly could be renewed even as Crown sovereignty and regulated commercial opening advanced.

04

STAGE 03

REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919

REPRESENTATION WITHOUT RESPONSIBILITY, 1861-1919

NOMINATION NOMINATED INDIAN NON-OFFICIALS; PORTFOLIO SYSTEM RECOGNISED LEGISLATIVE DECENTRALISATION

SCRUTINY BUDGET DISCUSSION AND QUESTIONS INDIRECT-ELECTION ELEMENT; OFFICIAL MAJORITIES

REPRESENTATION SEGMENTED SEPARATE ELECTORATES FOR MUSLIMS LARGER COUNCILS; INDIAN

RESPONSIBILITY DIVIDED PROVINCIAL DYARCHY

RESERVED VERSUS TRANSFERRED SUBJECTS CENTRAL BICAMERALISM; DIRECT ELECTIONS AND

1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility

1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

1909: REPRESENTATION SEGMENTED separate electorates for Muslims larger councils

Indian on Viceroy's Executive Council executive still not responsible to legislature

1919: RESPONSIBILITY DIVIDED provincial dyarchy: reserved versus transferred subjects central bicameralism

CONSTITUTIONAL BASIS / ARTICLE

1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility

1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

POWER / PROCEDURE

1909: REPRESENTATION SEGMENTED separate electorates for Muslims larger councils

Indian on Viceroy's Executive Council executive still not responsible to legislature

CHECK / LIMIT

1919: RESPONSIBILITY DIVIDED provincial dyarchy: reserved versus transferred subjects central bicameralism

direct elections and limited franchise ministers lacked decisive coercive and fiscal levers

FEDERAL / RIGHTS IMPACT

1861: NOMINATION nominated Indian non-officials; portfolio system recognised legislative decentralisation revived; no executive responsibility

1892: SCRUTINY budget discussion and questions indirect-election element; official majorities retained

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Councils Acts of 1861 and 1892 widened Indian association and legislative scrutiny, yet official majorities ensured that consultation did not become responsible government.

05

STAGE 04

THE 1935 CONSTITUTIONAL MACHINE: PROMISE AND SAFEGUARDS

THE 1935 CONSTITUTIONAL MACHINE

PROMISE AND SAFEGUARDS

GOVERNMENT OF INDIA ACT 1935

ALL-INDIA FEDERATION

PROVINCES + PRINCELY STATES

+++ NEVER COMMENCED BECAUSE REQUIRED PRINCELY ACCESSION FAILED

LEGISLATIVE DISTRIBUTION

+++ FEDERAL LIST 59

GOVERNMENT OF INDIA ACT 1935

ALL-INDIA FEDERATION: provinces + princely states

+++ never commenced because required princely accession failed

LEGISLATIVE DISTRIBUTION

CONSTITUTIONAL BASIS / ARTICLE

GOVERNMENT OF INDIA ACT 1935

ALL-INDIA FEDERATION: provinces + princely states

+++ never commenced because required princely accession failed

LEGISLATIVE DISTRIBUTION

POWER / PROCEDURE

+++ Federal List 59

Provincial List 54

Concurrent List 36

+++ residuary allocation vested in Governor-General

CHECK / LIMIT

+++ dyarchy abolished → provincial autonomy

+++ ministers responsible to provincial legislatures

CENTRE: proposed dyarchy; not brought into operation

INSTITUTIONS: Federal Court 1937

FEDERAL / RIGHTS IMPACT

bicameral provinces

SAFEGUARDS: discretion, special responsibilities and reserved powers

VERDICT: autonomy was enlarged inside an imperial veto structure.

MECHANISM / VERDICT — VERDICT: autonomy was enlarged inside an imperial veto structure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Government of India Act 1935 designed an all-India federation and provincial autonomy, but the federation never became operational before independence.

STAGE 05

1935 INHERITANCE: RETAINED, TRANSFORMED, REJECTED

1935 INHERITANCE

RETAINED, TRANSFORMED, REJECTED

1935 DEVICE 1950 TREATMENT

THREE LEGISLATIVE LISTS RETAINED; REDISTRIBUTED UNDER SEVENTH SCHEDULE

FEDERAL COURT TRANSFORMED INTO SUPREME COURT WITH WIDER REVIEW

PROVINCIAL AUTONOMY RETAINED AS ELECTED STATE GOVERNMENT

PUBLIC SERVICE COMMS. CONSTITUTIONALISED FOR UNION AND STATES

EMERGENCY MACHINERY RETAINED BUT SUBJECTED TO CONSTITUTIONAL PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE

1935 DEVICE 1950 TREATMENT

POWER / PROCEDURE

Provincial autonomy retained as elected State government

CHECK / LIMIT

Governor's office retained; democratic responsibility replaces imperial command

FEDERAL / RIGHTS IMPACT

universal adult suffrage ruler safeguards → enforceable rights and judicial review

HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION • TILE 2/4 • same master rows 2525-5759 of 10808 • continues below

MECHANISM / VERDICT — VERDICT: autonomy was enlarged inside an imperial veto structure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Government of India Act 1935 designed an all-India federation and provincial autonomy, but the federation never became operational before independence.

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CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
1935 DEVICE 1950 TREATMENT	Provincial autonomy retained as elected State government	Governor's office retained; democratic responsibility replaces imperial command	universal adult suffrage ruler safeguards → enforceable rights and judicial review
Three legislative lists retained; redistributed under Seventh Schedule	Public Service Comms. constitutionalised for Union and States	All-India Services retained as an integrating administrative instrument	
Federal Court transformed into Supreme Court with wider review	Emergency machinery retained but subjected to constitutional procedure	REJECTED OR NORMATIVELY BROKEN imperial sovereignty → popular sovereignty communal electorates → common electoral citizenship limited franchise →	

CONSTITUTIONAL BASIS / ARTICLE

• 1935 DEVICE 1950 TREATMENT

• Three legislative lists retained; redistributed under Seventh Schedule

• Federal Court transformed into Supreme Court with wider review

POWER / PROCEDURE

• Provincial autonomy retained as elected State government

• Public Service Comms. constitutionalised for Union and States

• Emergency machinery retained but subjected to constitutional procedure

CHECK / LIMIT

• Governor's office retained; democratic responsibility replaces imperial command

• All-India Services retained as an integrating administrative instrument

• REJECTED OR NORMATIVELY BROKEN imperial sovereignty → popular sovereignty
communal electorates → common electoral citizenship limited franchise →

FEDERAL / RIGHTS IMPACT

• universal adult suffrage ruler safeguards → enforceable rights and judicial review

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative control widened from centralisation to scrutiny; executive accountability moved from corporate to imperial control before becoming democratic only after independence.

06

STAGE 06

1947 BRIDGE: DOMINION LEGALITY TO REPUBLICAN AUTHORITY

1947 BRIDGE

DOMINION LEGALITY TO REPUBLICAN AUTHORITY

INDIAN INDEPENDENCE ACT 1947

BRITISH RULE ENDS; INDIA AND PAKISTAN BECOME DOMINIONS

BRITISH PARLIAMENTARY AUTHORITY OVER THE NEW DOMINIONS ENDS PRINCELY-STATE

CONSTITUENT ASSEMBLY BECOMES SOVEREIGN CONSTITUTION-MAKER

ASSEMBLY ALSO ACTS AS DOMINION LEGISLATURE

TRANSITIONAL GOVERNMENT EXISTING LAW AND ADMINISTRATION CONTINUE UNLESS ALTERED

INDIAN INDEPENDENCE ACT 1947

British rule ends; India and Pakistan become Dominions

British parliamentary authority over the new Dominions ends princely-state suzerainty lapses; accession is not automatic

Constituent Assembly becomes sovereign constitution-maker

Assembly also acts as Dominion legislature

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
INDIAN INDEPENDENCE ACT 1947	Constituent Assembly becomes sovereign constitution-maker	26 NOV 1949: Constitution adopted	BRIDGE: legal continuity prevented a vacuum; constituent power changed authority's source.
British rule ends; India and Pakistan become Dominions	Assembly also acts as Dominion legislature	24 JAN 1950: members sign	
British parliamentary authority over the new Dominions ends princely-state suzerainty lapses; accession is not automatic absorption	TRANSITIONAL GOVERNMENT existing law and administration continue unless altered	26 JAN 1950: Constitution commences; republic replaces dominion status	

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Independence Act 1947 ended British sovereignty and paramountcy and made the Constituent Assemblies sovereign legislatures, but left integration and constitution-making to Indian agency.

07

STAGE 07

COLONIAL REFORM: OFFICIAL MOTIVE VERSUS INDIAN PRESSURE

COLONIAL REFORM

OFFICIAL MOTIVE VERSUS INDIAN PRESSURE

OFFICIAL PROBLEM IMPERIAL RESPONSE

COMPANY ABUSE

FISCAL CRISIS PARLIAMENTARY REGULATION, NOT SELF-GOVERNMENT ADMINISTRATIVE OVERLOAD CENTRALISATION

INDIAN COUNTER-PRESSURE ASSOCIATIONS

CONGRESS DEMANDS

HOME RULE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
OFFICIAL PROBLEM IMPERIAL RESPONSE	limited elections, controlled devolution mass political pressure graded responsibility with vetoes and safeguards communal bargaining separate electorates and	INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation	Indian politics converted concessions into platforms for further claims.
Company abuse / fiscal crisis parliamentary regulation, not self-government administrative overload centralisation, codification, specialised services nationalist representation councils,	group arrangements	British policy designed controlled adaptation to preserve authority.	Reform was neither a unilateral gift nor a linear march to democracy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Colonial constitutional reform was neither a linear gift nor a single nationalist victory: British control incentives and Indian political pressure interacted, while authority remained deliberately short of popular sovereignty.

08

STAGE 08

HISTORICAL-BACKGROUND CLOSE-OPTION CONTROL BOARD

HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION • TILE 3/4 • same master rows 5049-8283 of 10808 • continues below

HOME RULE

CONSTITUTIONAL BASIS / ARTICLE

- OFFICIAL PROBLEM IMPERIAL RESPONSE
- Company abuse / fiscal crisis parliamentary regulation, not self-government administrative overload centralisation, codification, specialised services nationalist representation councils,

POWER / PROCEDURE

- limited elections, controlled devolution mass political pressure graded responsibility with vetoes and safeguards communal bargaining separate electorates and
- group arrangements

CHECK / LIMIT

- INDIAN COUNTER-PRESSURE associations → Congress demands → Home Rule → mass movements → negotiation
- British policy designed controlled adaptation to preserve authority.

FEDERAL / RIGHTS IMPACT

- Indian politics converted concessions into platforms for further claims.
- Reform was neither a unilateral gift nor a linear march to democracy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Colonial constitutional reform was neither a linear gift nor a single nationalist victory: British control incentives and Indian political pressure interacted, while authority remained deliberately short of popular sovereignty.

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STAGE 08

HISTORICAL-BACKGROUND CLOSE-OPTION CONTROL BOARD

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CLAIM TO TEST EXACT CONTROL

1773 CREATED GOVERNOR-GENERAL OF INDIA NO

GOVERNOR-GENERAL OF BENGAL

1784 TRANSFERRED INDIA TO CROWN RULE NO

DUAL CONTROL; CROWN RULE BEGINS IN 1858

1813 ENDED EVERY COMPANY MONOPOLY NO

TEA AND CHINA TRADE EXCEPTIONS REMAINED

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
CLAIM TO TEST EXACT CONTROL	1813 ended every Company monopoly No: tea and China trade exceptions remained	1892 made executive legislature-dependent No: scrutiny without responsibility	1935 federation operated No: federal part never commenced
1773 created Governor-General of India No: Governor-General of Bengal	1833 introduced open civil-service exam No: principle opened; competition came later	1909 began responsible government No: representation widened, executive insulated	1935 created RBI directly RBI Act 1934; operations began in 1935
1784 transferred India to Crown rule No: dual control; Crown rule begins in 1858	1861 introduced elected representation No: nominated Indian non-officials	1919 put dyarchy at Centre No: provincial dyarchy	1947 automatically integrated princes No: suzerainty lapsed; integration followed

CONSTITUTIONAL BASIS / ARTICLE

- CLAIM TO TEST EXACT CONTROL
- 1773 created Governor-General of India No: Governor-General of Bengal
- 1784 transferred India to Crown rule No: dual control; Crown rule begins in 1858

POWER / PROCEDURE

- 1813 ended every Company monopoly No: tea and China trade exceptions remained
- 1833 introduced open civil-service exam No: principle opened; competition came later
- 1861 introduced elected representation No: nominated Indian non-officials

CHECK / LIMIT

- 1892 made executive legislature-dependent No: scrutiny without responsibility
- 1909 began responsible government No: representation widened, executive insulated
- 1919 put dyarchy at Centre No: provincial dyarchy

FEDERAL / RIGHTS IMPACT

- 1935 federation operated No: federal part never commenced
- 1935 created RBI directly RBI Act 1934; operations began in 1935
- 1947 automatically integrated princes No: suzerainty lapsed; integration followed

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 1909 reforms widened representation by institutionalising religious separation, making separate electorates both a concession and a constitutional warning.

09

STAGE 09

EXACT 10/15-MARK ARCHITECTURE: EVOLUTION INTO THE 1950 CONSTITUTION

EXACT 10/15-MARK ARCHITECTURE

EVOLUTION INTO THE 1950 CONSTITUTION

10 MARKS

150 WORDS

1. THESIS

COLONIAL STATUTES BUILT MACHINERY; 1950 CHANGED ITS SOVEREIGN BASIS.

2. THREE PHASES

1773-1858 CONTROL; 1861-1919 REPRESENTATION; 1935 BLUEPRINT.

10 MARKS / 150 WORDS

1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis.

2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint.

3. Evidence: one exact Act-feature pair from each phase.

4. Pivot: 1947 transferred constituent authority and preserved legal continuity.

CONSTITUTIONAL BASIS / ARTICLE 10 MARKS / 150 WORDS 1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis. 2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint. 3. Evidence: one exact Act-feature pair from each phase.	POWER / PROCEDURE 4. Pivot: 1947 transferred constituent authority and preserved legal continuity. 5. Verdict: structural continuity plus democratic rupture. 15 MARKS / 250 WORDS 1. Open with Diwani power-accountability mismatch.	CHECK / LIMIT 2. Trace control: 1773 → 1784 → 1858. 3. Trace participation: 1861 → 1892 → 1909 → 1919. 4. Explain 1935 lists, autonomy, institutions and safeguards. 5. Compare retained devices with rejected imperial principles.	FEDERAL / RIGHTS IMPACT 6. Add Indian pressure versus British controlled adaptation. 7. Conclude: inheritance supplied instruments, not constitutional legitimacy.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Constitution retained and transformed colonial machinery - lists, Governors, courts and services - while rejecting communal electorates, restricted franchise and imperial supremacy.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

0. FRAME

PART A — COMPANY RULE (1773–1858)

PART B — CROWN RULE (1858–1947)

QUICK "FIRSTS" TABLE (PRELIMS GOLD)

UPSC TRAPS

WHY IT MATTERS

MAINS ANGLES

OPTIONAL DOCTRINE / CASE 0. Frame - PART A — COMPANY RULE (1773–1858) - PART B — CROWN RULE (1858–1947) - Quick "FIRSTS" table (Prelims gold)	ADVANCED LIMIT - UPSC Traps - Why it matters / relevance - Mains angles - Advanced synthesis — criticisms, replies and final evaluation	COMPARATIVE NUANCE - NOT: Regulating Act created GG of India → GG of Bengal ; GG of India came with Charter Act 1833 . - NOT: 1853 abolished Company → Company abolished by GoI Act 1858 . - NOT: Morley-Minto (1909) introduced dyarchy → dyarchy = 1919 ; 1909 = communal electorate. - NOT: 1919 introduced provincial autonomy → that's 1935 ; 1919 = dyarchy.
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OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.